

sale (*d*), all or any part of the assets, legal or equitable (*e*); and though liable to render an account to the Court, he cannot be interrupted in the discharge of his office by any person claiming either *dehors* the will, as a creditor, or under it, as a legatee. The *creditor* has merely a demand against the executor personally (*f*), the *pecuniary* or *specific legatee* is not entitled to the legacy or bequest until the executor has assented (*g*), and the *residuary legatee* has no lien until the estate has been liquidated and cleared of all liabilities, both *dehors* and under the will (*h*). Upon the sale of the chattel, the purchaser is not concerned to see to the application of his purchase-money, and it need not be recited in the conveyance that the money is wanted for the discharge of liabilities (*i*): it is sufficient that the purchaser trusts him whom the testator has trusted (*j*): if there be any misapplication, the remedy of the creditor or legatee is not against the purchaser, but the executor (*k*). It is impossible for the purchaser to ascertain the necessity of the sale, for [*478] this * must depend upon the state of the accounts, which he has no means of investigating without the powers annexed only to the executorship (*a*).

Notice of the will. — Even express notice of the will, and of the bequests contained in it, works to the purchaser no prejudice; for “every person,” said Sir J. Leach, “who deals with an executor has necessarily implied if not express notice of the will: but as a purchaser of real estate devised

(*d*) *Russell v. Plaipe*, 18 Beav. 21; and see p. 426, *supra*.

(*e*) *M'Leod v. Drummond*, 14 Ves. 360, *per* Sir W. Grant; *Nugent v. Gifford*, 1 Atk. 463.

(*f*) *Nugent v. Gifford*, 1 Atk. 463, *per* Lord Hardwicke; *Mead v. Orrery*, 3 Atk. 238, *per eundem*; *M'Leod v. Drummond*, 17 Ves. 163, *per* Lord Eldon.

(*g*) *Mead v. Orrery*, 3 Atk. 238, 240, *per* Lord Hardwicke. But the executor is bound to assent as soon as the funeral and testamentary expenses and debts have been paid, *Greene v. Greene*, 3 I. R. Eq. 102, *per Cur.*

(*h*) *M'Leod v. Drummond*, 17 Ves. 163, 169, *per* Lord Eldon; and see *Mead v. Orrery*, 3 Atk. 238, 240.

(*i*) *Bonney v. Ridgard*, 1 Cox, 148, *per* Lord Kenyon.

(*j*) *Id.*

(*k*) *Humble v. Bill*, 2 Vern. 445, *per Cur.*; *Ewer v. Corbet*, 2 P. W. 149, *per* Sir J. Jekyll; *Watts v. Kancie*, Toth. 77; *Nurton v. Nurton*, *id.*

(*a*) *Ewer v. Corbet*, 2 P. W. 149, *per* Sir J. Jekyll; *Humble v. Bill*, 2 Vern. 445, *per Cur.*; *Nugent v. Gifford*, 1 Atk. 464, *per* Lord Hardwicke; *Mead v. Orrery*, 3 Atk. 242, *per eundem*.